



CHAPTER cxxix.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the M'Callum Celtic Lectureship in the University of Glasgow. A.D. 1905.
[4th August 1905.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Glasgow University Order Confirmation Act 1905. Short title.

[Ch. cxxix.] *Glasgow University Order Confirmation* [5 Edw. 7.]
Act, 1905.

A.D. 1905.

SCHEDULE.

GLASGOW UNIVERSITY.

*Provisional Order to regulate the M'Callum Celtic Lectureship
in the University of Glasgow and for other purposes.*

WHEREAS the deceased Reverend Archibald Kelly M'Callum M.A. LL.D. who resided at Primrose Villa 57 St. Andrews Drive Pollokshields by his holograph last will and testament dated 8th March 1881 with three holograph codicils thereto annexed the first whereof bears no date and the second and third are dated respectively 3rd June 1882 and 27th January 1892 recorded in the Books of Council and Session 3rd February 1894 directed his trustees in the event of his predeceasing his wife Ann Grant or M'Callum inter alia to realise his property and invest the proceeds all as therein mentioned and that at the decease of his wife or if she desired during her life a certain sum should be annually devoted to a lectureship or course of lectures of not fewer than fifteen lectures on the subject of Celtic literature which should be called "The Celtic Lectureship" or "The M'Callum Celtic Lectures" and that a like sum should be triennially devoted to a course of lectures on the means best fitted to promote the interests spiritually educationally economically and materially of the inhabitants of the Highlands and Islands of Scotland as therein mentioned and that the Senatus of Glasgow University should be requested to accept the said lectureships and the appointment of the lecturers and that the first course of lectures should be delivered within the College walls and be open to all students and others who might choose to attend free of expense and that should his trustees find after payment of the legacies specified in the said will that there were not sufficient funds to carry out immediately the said lectureships then they should continue the trust funds invested and allow the interest to accumulate for such a period of years as should form an adequate capital or endowment sufficient towards the annual payment of the said lectureships and the annual contribution

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after mentioned towards the support of his library and that his library should be offered in connection with said lectureships to Glasgow University provided said University accepted the said lectureships as a nucleus or foundation for a Celtic library for the use of the lecturers and students attending the lectures and that the said library should be kept separate and distinct and be designated "The Celtic Lectureship Library" and that the sum of ten pounds should be annually expended in making such small additions thereto from time to time as might be found convenient with the view of stimulating others in possession of means or suitable books towards contributing to the formation of a library which might in time include most or all of the publications bearing on the Celtic languages and that the lecturer for the time being might be appointed to judge of such books as might be suitable to add to said library and further directed that his presentation silver tray should also be presented along with his library to Glasgow University provided the said University accepted the said lectureships to be kept in the College Museum of said University and preserved as a part of said gift of said library and so noted and that his trustees should expend the sum of one hundred pounds or thereby on the publication of his manuscript entitled "Horae Celticae" or "A Contribution towards the History of the Celtic Language and Literature of Scotland &c." and his manuscript on "The Celtic Hymns of Scotland" should such publications not have been made by him during his lifetime and that the proceeds or profits of such publications if any should be devoted towards purchasing additional books to his said library and that the lecturer for the time being should undertake the corrections of said publications while passing through the press for which services an allowance of ten pounds in addition to his fees as lecturer should be granted to him :

And whereas by his said will and testament the truster directed that the appointment to the said Lectureship No. 1 ("The Celtic Lectureship" or "The McCallum Celtic Lectures") should be for three years and that the lecturer should be eligible for re-election after a subsequent appointment :

And whereas by said codicil dated 3rd June 1882 the truster in consequence of the reduction in the value of property should such reduction continue permanently to affect the properties belonging to him referred to in said last will and testament directed his trustees not to carry out the provisions

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A.D. 1905. of the second lectureship and confine themselves to the execution of such of the provisions applicable to the first mentioned lectureship as the means at their disposal would enable them to carry out and to secure this such sum as might be available to be invested for such a period of years (say from fifteen to twenty) until the capital and interest should amount to a sum sufficiently adequate for the said purpose and he directed his trustees to complete and publish certain works as therein mentioned :

And whereas the wife of the truster died upon the 20th December 1891 :

And whereas by said codicil dated 27th January 1892 the truster considering that the said will and testament was drawn up primarily in favour of his wife (now predeceased) directed his trustees to execute the rest of his will as much as might be for the objects contemplated by him :

And whereas the said Archibald Kelly M'Callum having died on the 18th July 1893 his trustees who accepted office entered upon the possession and management of his means and estate and administered the same :

And whereas the trustees made payment of all the debts due by the deceased so far as known and his funeral expenses and Government duties and also made payment of or provided for the pecuniary legacies bequeathed by the deceased and erected a monument in Craigton Cemetery in memory of the deceased and his wife :

And whereas the trustees in accordance with deceased truster's directions made offer of his library and presentation silver tray to the Senatus of the University of Glasgow and the said University having agreed to take over the same in connection with the lectureship the said library and silver tray were delivered to the University :

And whereas the whole of the said truster's means and estate having been realised the trustees after careful consideration of the testamentary directions left by him with regard to the residue thereof and having regard to the continued reduction in value of the estate were of opinion that these could be best carried out by making over the free residue to the University Court of the University of Glasgow (in this Order called "the University Court") to be applied for the purposes directed by the deceased as after specified and they accordingly offered to make over the same to the said University Court to be applied for the purposes

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and on the conditions after specified and the University Court A.D. 1905.
agreed to accept the same for the said purposes :

And whereas the free residue of the said estate amounted as shown in the accounts of the trustees of the said Reverend Archibald Kelly M'Callum to the sum of three thousand and forty-four pounds three shillings and threepence which the said trustees paid and delivered to the University Court along with said library and silver tray upon the conditions after mentioned that is to say (1) the said sum of three thousand and forty-four pounds three shillings and threepence should subject to the expense of managing the fund including a reasonable annual factor's fee be applied by the University Court for the foundation of a lectureship or a course of lectures in Glasgow University on the subject of Celtic literature which lectureship or course of lectures should be called "The M'Callum Lectureship" or "The M'Callum Celtic Lectures" and the minimum number of lectures to be delivered annually should be fixed from time to time by the Senatus Academicus of the said University (2) the University Court should have the power of appointment of the lecturers who should hold office for a term of three years but should be eligible for re-election for the same term of years after a subsequent appointment (3) the first course of lectures should be delivered within the University and should be open to all free of charge (4) the lectures to be delivered should be the private property of the lecturers who should be taken bound by the terms of their appointment to publish them in as accessible a form as may be found convenient and all profits to be derived from such publication should belong to the lecturers (5) the said library should form the foundation of a Celtic library for the use of the lecturers and those attending the lectures and should be kept separate and distinct from all other libraries belonging to Glasgow University and be designated "the Celtic Lectureship Library" and towards its upkeep and in making such additions thereto as may be found suitable there should be expended annually the sum of ten pounds the selection of such additions being made with the approval of the lecturer holding office at the time (6) the following should be among the subjects to be treated of in the said lectures (*first*) The original home of the Aryan people the distinctive features of their language and the languages living and dead that have so far as known descended from the original Aryan speech (*second*) the position of the Celtic language in the Indo-European or Aryan group (*third*) the special relationship of the Celtic dialects to the Latin

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A.D. 1905. — and Teutonic languages respectively (*fourth*) the relationship if any of the Celtic to the Basque &c. tongues and dialects (*fifth*) the value of anthropology and archæology in determining the race and linguistic relationship of the Celt (*sixth*) the position of the Gaulish language in the Celtic group (*seventh*) the value of Celtic studies and especially of a scientific knowledge of Scottish and Irish Gaelic in investigating the race and linguistic relationship of the early inhabitants of Scotland (*eighth*) the influence of the Columban mission on the history of Scotland and the literature of the Gael and (*ninth*) the place of Scottish Gaelic in the intelligent and intellectual instruction of the Highland people and (7) the said silver tray should be preserved in the College Museum of Glasgow University as part of the said trustor's foresaid gift all which is also fully set out in a discharge by the said University Court in favour of the trustees of the said Archibald Kelly M'Callum dated the 28th and registered in the Books of Council and Session on the 31st both days of May 1898:

And whereas a lecturer was duly appointed in July 1900 and delivered three courses of lectures in accordance with the terms of the arrangement in the said deed of discharge:

And whereas upon the expiry of the period of three years for which such lecturer had been appointed a second lecturer was appointed and is now in office and is in the course of delivering lectures:

And whereas the condition in the said will and deed of discharge that the lecturer shall hold office for three years only and shall not be eligible for re-election until after the lapse of a period of three years is found to be inconvenient and prejudicial to the utility of the said lectures:

And whereas the University Court in the case of other lectureships are entitled to appoint a lecturer for the period of five years or such less number of years as they may think proper and to renew such appointments:

And whereas Celtic language and literature is one of the subjects which qualifies for graduation in Arts provided the candidate for the degree has attended a full course of lectures upon the subject:

And whereas the lectures at present delivered under the terms of the aforesaid deed are insufficient to qualify for graduation:

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And whereas the salary attached to the lectureship may be insufficient to secure the services of a competent lecturer for a full course : A.D. 1905.

And whereas it is expedient that the arrangements aforesaid should be altered as in this Order provided :

And whereas the objects aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Glasgow University (M'Callum Lectureship) Order 1905 and shall commence and have effect on and from the date of the passing of the Act confirming the same. Short title and commencement of Order.

2. Notwithstanding anything contained in the said last will and testament and codicils of the said Archibald Kelly M'Callum or in the said deed of discharge by the University Court— Provisions as to the M'Callum lectureship.

(1) The lectureship thereby directed to be instituted shall be on the same footing with respect to the payment of fees and in all other respects as a lectureship established under Ordinance No. 17 General No. 10 made by the Commissioners acting under the Universities (Scotland) Act 1889 and the University Court shall have power to appoint a lecturer for the same period and on the same terms as a lecturer appointed under the said ordinance :

(2) The University Court shall be entitled to apply the residuary funds of the said trust estate in their possession as well as any University funds or any other funds which may or shall be specially subscribed or appropriated for the purpose in increasing the remuneration of the person holding the said lectureship for the time being :

(3) The provisions of sections ten eleven twelve and thirteen of the said ordinance or the corresponding provisions of any ordinance that may hereafter be substituted therefor or in addition thereto shall apply to the said lectureship and to the lecturer appointed thereto.

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Costs of
Order.

3. The costs of this Order shall be paid from the funds of the M'Callum Lectureship or from any funds which have been or may be subscribed for the further or better endowment of the said lectureship.

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